NOVACARE DISCIPLINARY PROCEDURE

Document status: Hypothetical internal company document. This document is designed for NovaCare's home-maintenance service model and should be reviewed against applicable Sri Lankan employment, privacy, occupational safety and other legal requirements before operational use.

Purpose

This procedure provides a fair and consistent framework for addressing alleged misconduct, serious breaches of company rules or repeated failure to meet required standards. It should be applied together with applicable Sri Lankan employment law and the employee's contractual terms.

Examples of Concerns

Potential concerns may include repeated unauthorized absence, serious customer misconduct, theft, fraud, deliberate property damage, falsification of service records, unauthorized customer charges, serious safety breaches, harassment, violence or misuse of confidential information.

Initial Assessment

A manager receiving a concern should record the basic facts and notify the appropriate HR or management representative. Immediate protective measures may be taken where necessary to protect customers, employees, evidence or company property.

Investigation

The company should gather relevant information objectively, including job records, communications, attendance information, customer reports and witness accounts where appropriate. The employee should be given a reasonable opportunity to respond to allegations before a final decision is made.

Disciplinary Meeting

Where formal action is considered, the employee should be informed of the concern and given an appropriate opportunity to explain their position. The company should consider the evidence and relevant circumstances before deciding the outcome.

Outcomes

Depending on the seriousness and circumstances, outcomes may include no formal action, counselling, a warning, further training, a final warning or termination where legally and contractually permitted. The response should be proportionate and consistent with the applicable rules.

Appeal

Where company procedure provides an appeal, the employee should be informed of the appeal route and applicable timeframe. An appeal should be considered by an appropriately authorized person who was not improperly involved in the original decision.

Records

Disciplinary records must be factual, confidential and securely stored. Relevant records may include correspondence, meeting notes, evidence considered and the final decision.